

DEPARTMENT OF LABOR AND EMPLOYMENT

Division of Labor Standards and Statistics

2026 PUBLICATION AND YEARLY CALCULATION OF ADJUSTED LABOR COMPENSATION (2026 PAY CALC) ORDER

7 CCR 1103-14

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Adopted December 8, 2025; effective February 1, 2026.

Rule 1. Statement of Purpose, Requirements, and Calculations

1.1 This Publication And Yearly Calculation of Adjusted Labor Compensation Order (PAY CALC Order), 7 CCR 1103-14, publishes values that adjust periodically under the Colorado Wage Act, C.R.S. § 8-4-101 et seq., Colorado Overtime and Minimum Pay Standards Order (COMPS Order), 7 CCR 1103-1, Wage Protection Rules, 7 CCR 1103 7, or other laws.

1.2 Coverage and Application.

1.2.1 Following are the 2026 minimum pay and income levels and future adjustments in each cited COMPS Order rule, and/or mandated by constitutional, statutory, or rule provisions the COMPS Order implements, or from which it derives.

Minimum Pay Level in COMPS Order Rule	2026 Level (Yearly Calculation)	Future Annual Adjustments
(A) Full Colorado minimum wage (R. 3.1)	\$15.16 per hour	Last year's minimum adjusted by CPI (Consumer Price Index) for Colorado
(B) Amount of Colorado minimum wage that employers must pay to tipped employees (R. 1.10, 6.2.3)	\$12.14 per hour to the extent that adding tips raises total pay to full minimum wage	\$3.02 per hour below full Colorado minimum wage to the extent that adding tips raises total pay to full Colorado minimum wage
(C) Minimum wage for non- emancipated minors (R. 3.3)	\$12.89 per hour	15% below full minimum wage

Minimum Pay Level in COMPS Order Rule	2026 Level (Yearly Calculation)	Future Annual Adjustments
(D) Minimum pay for agricultural range workers (R. 2.4.9)	\$620.52 per week	Prior year's level adjusted by inflation
(E) Executive/supervisor, administrative, or professional employees (EAP) (R. 2.5.1); certain owners or proprietors of non-profit employers (R. 2.2.5); decision-making managers at livestock employers (R. 2.4.8)	\$1,111.23 per week (\$57,784 rounded annual equivalent); and sufficient for the minimum wage for all hours worked in a workweek	Prior year's level adjusted by inflation
(F) Highly technical computer employees (R. 2.5.2, 2.2.10)	\$34.85 per hour or the EAP salary above (row E)	Prior year's hourly wage adjusted by inflation, or the EAP salary above
(G) Highly compensated employees (R. 2.2.11)	\$130,014 annually, <i>and</i> the EAP salary (row E) weekly	The annual EAP salary (row E) multiplied by 2.25
(H) Certain drivers and driver's helpers (R. 2.4.6)	\$833.80 per week	Based on Colorado minimum wage each year
(I) Certain seasonal camp or outdoor education field staff (R. 2.2.7(E))	Full minimum wage or, per week: \$436.72 (adults) or \$341.38 (minors); except at non-profits with up to \$25 million in revenue, \$330.60 (adults) or \$251.15 (minors)	Based on Colorado minimum wage each year

- 1.2.2** The following amounts in the Colorado Wage Act, C.R.S. § 8-4-101 et seq., must also be periodically adjusted. The table below describes these amounts, any related rules, the dates that each amount applies during, and the future adjustments to these amounts.

Inflation or Otherwise Adjusted Wage Act Amounts	Amounts and Dates	Future Adjustments
(A) The Division shall accept wage claims for the following per-employee amounts, pursuant to C.R.S. § 8-4-111(2)(a)(I) and as stated in Wage Protection Rule 3.1.5	Through June 30, 2026: \$7,500 per employee From July 1, 2026 through December 31, 2027: \$13,000.00 per employee	On January 1, 2028, and then every other year thereafter, the rate will increase by either \$1,000 or a higher amount if necessary to adjust for inflation, as based on the CPI-U for Denver-Aurora-Lakewood

- 1.3** Additional Requirements. Many of the referenced COMPS Order rules have other requirements aside from a minimum pay level, including but not limited to: an employee having duties that qualify for exemption; an employee receiving sufficient tips to allow for a tip credit to be taken; and an employer paying any higher applicable federal, local, or minimum wage.

Rule 2. Authority, Construction, and Definitions

- 2.1** Authority and Application. This PAY CALC Order is issued under the authority and as enforcement of Section 15 of Article XVIII of the Colorado Constitution and Articles 1, 4, 6, 12, and 13.3 of C.R.S. Title 8, and is intended to be consistent with these provisions as well as the State Administrative Procedure Act, C.R.S. § 24-4-101, et seq. Where these Rules reference another rule, the reference shall be deemed to include all subparts of the referenced rule. Where these Rules have provisions different from or contrary to any referenced material, the provisions of these Rules govern, so long as they are consistent with Colorado statutory and constitutional provisions. Unless otherwise noted, in these Rules: all statutes cited apply the most recent versions of the Colorado Revised Statutes; all rules cited apply the most recent versions adopted as of the adoption of these Rules. Earlier versions of such laws and rules may apply to events that occurred in prior years.

- 2.2** Administration and Dual Jurisdiction. The Division shall have jurisdiction over all questions arising with respect to the administration and interpretation of this PAY CALC Order. Whenever employers are subjected to Colorado law as well as federal and/or local law, the law providing greater protection or setting the higher standard shall apply. For information on federal law, contact the U.S. Department of Labor, Wage and Hour Division; find local minimum wages, industry-specific base wages, and other wage requirements in Colorado at www.coloradolaborlaw.gov, or contact the relevant local government for more details.
- 2.3** Separability. These Rules are intended to remain in effect to the maximum extent possible. If any part (including any section, sentence, clause, phrase, word, or number) is held invalid, **(A)** the remainder of the Rules remain valid, and **(B)** if the provision is held not wholly invalid, but merely in need of narrowing, the provision should be retained in narrowed form.
- 2.4** “Division” means the Division of Labor Standards and Statistics in the Colorado Department of Labor and Employment.

Editor's Notes

History

New rule eff. 01/01/2022.

Entire rule eff. 01/01/2023.

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